

SUPREME COURT OF INDIA

Shafin Jahan v. Asokan K.M. & Ors. (Hadiya case)

(2018) 16 SCC 368

Decided 8 March 2018 · 3-judge bench

61 pages of the original

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REPORTABLE IN THE SUPREME COURT OF INDIA CRIMINAL APPELLATE
JURISDICTION CRIMINAL APPEAL NO. 366 OF 2018 (Arising out of S.L.P. (Crl.) No.
5777 of 2017)

Shafin Jahan

...Appellant(s)

Versus

Asokan K.M. & Ors.

...Respondent(s)

J U D G M E N T

Dipak Misra, CJI [for himself and A.M. Khanwilkar, J.]

Rainbow is described by some as the autograph of the Almighty

and

lightning,

expression

of

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“Nature”.

Elaborating the comparison in conceptual essentiality, it can be said that when the liberty of a person is illegally smothered and strangulated and his/her choice is throttled by the State or a private person, the signature of life melts and living becomes a bare subsistence. That is fundamentally an expression of

Signature Not Verified Digitally signed by CHETAN KUMAR Date: 2018.04.09 16:03:39
IST Reason:

acrimony which gives indecent burial to the individuality of a person and refuses to recognize the other’s identity.

That is

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reflection of cruelty which the law does not countenance. The exposé of facts in the present case depicts that story giving it a colour of different narrative. It is different since the State that is expected to facilitate the enjoyment of legal rights of a citizen has also supported the cause of a father, an obstinate one, who has endeavoured immensely in not allowing his daughter to make her own choice in adhering to a faith and further making Everestine effort to garrotte her desire to live with the man with whom she has entered into wedlock. The thought itself is a manifestation of the idea of patriarchal autocracy and possibly selfobsession with the feeling that a female is a chattel. It is also necessary to add here that the High Court on some kind of assumption, as the impugned judgment and order would reflect, has not been appositely guided by the basic rule of the highly valued writ of habeas corpus and has annulled the marriage. And that is why the order becomes a sanctuary of errors.

2.

On 08.03.2018, this Court had allowed the appeal passing the following order: “Leave granted.

Heard Mr. Kapil Sibal and Ms. Indira Jaising, learned senior counsel along with Mr. Haris Beeran,

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learned counsel for the appellant, Mr. Maninder Singh, learned Additional Solicitor General for the National Investigation Agency (NIA) and Mr. Shyam Divan, learned senior counsel along with Ms.

Madhavi Divan, learned counsel for respondent No.1.

The reasoned judgment will follow. operative part of the order reads as follows:

The

Considering the arguments advanced on both sides, in the facts of the present case, we hold that the High Court should not have annulled the marriage between appellant No.1, Shafin Jahan and respondent No.9, Hadiya alias Akhila Asokan, in a Habeas Corpus petition under Article 226 of the Constitution of India. We say so because in the present appeal, by special leave, we had directed the personal presence of Hadiya alias Akhila Asokan; she appeared before this Court on 27th November, 2017, and admitted her marriage with appellant No.1.

In view of the aforesaid, the appeal stands allowed. The judgment and order passed by the High Court is set aside. Respondent No.9, Hadiya alias Akhila Asokan is at liberty to pursue her future endeavours according to law. We clarify that the investigations by the NIA in respect of any matter of criminality may continue in accordance with law.”

3.

Presently, we proceed to state the reasons.

4.

The facts which are necessary to be stated are that Ms.

Akhila alias Hadiya, respondent No.9 herein, aged about 26 years at present, the only child of Sh. Asokan K.M., respondent No.1 herein, and Smt. Ponnamma, had completed a degree in

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Homeopathic

Medicine,

BHMS

(Bachelor

of

Homeopathic

Medicine and Surgery) from Shivaraj Homeopathic Medical College, Salem in Tamil Nadu. While pursuing the said course, she was initially residing in the college hostel and later she started staying in a rented house near her college together with five other students among whom were Jaseena and Faseena, daughters of one Aboobacker. During the college holidays, Hadiya used to visit the house of Aboobacker and there was also an occasion when both Jaseena and Faseena came to reside with Hadiya at the house of Asokan, respondent No.1 herein. On 6 th December, 2015, Hadiya's paternal grandfather breathed his last. Hadiya on that day came back to her house and it is alleged that at that time, the family members and relatives of Asokan noticed some changes in her behaviour as she was showing reluctance to participate in the rituals performed in connection with the funeral of her grandfather. Thereafter, she went to Salem for her internship along with Jaseena and Faseena. Till 5 th January, 2016, she was in constant touch with her family. Thereafter, on the next day, i.e., 6th January, 2016, Asokan received a telephone call from one of the friends of Hadiya informing that Hadiya had gone to the college on that day wearing a 'Pardah'. The

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respondent No.1 was further informed that Hadiya was inspired by someone to change her faith.

5.

Upon receiving the information, Asokan fell ill. Smt.

Ponnamma, wife of Asokan, called Hadiya and informed her about the illness of her father. Jaseena and Hadiya left for Salem about 8 p.m. on 6th January, 2016 but Hadiya did not reach her father's house. Later Asokan went in search of Hadiya and came to know from one Ms. Archana that Hadiya was living at the house of Aboobacker. Thereupon, Asokan contacted Aboobacker for meeting his daughter Hadiya. Aboobacker promised Asokan that he would bring Hadiya to the house of Ms. Archana, a friend of Hadiya, but this never happened and later Asokan was informed that Hadiya had escaped from the house of Aboobacker and had run away somewhere. Disgusted

and disgruntled, as he was, Asokan filed a complaint before S.P. Malapuram District, but as there was no progress made by the police in the investigation of the matter, Asokan filed a Writ Petition of Habeas Corpus before the Division Bench of the High Court of Kerala being W.P. (Criminal) No. 25 of 2016.

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6.

On 14.01.2016, when the case came up for admission, the

Division

Bench

directed

the

Government

pleader

to

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instructions regarding the action, if any, taken on the aforesaid complaint of Asokan. Thereafter, on 19.01.2016, when the case was taken up for further consideration, Hadiya appeared through a lawyer and filed an application for impleadment being I.A. No. 792 of 2016. The said application for impleadment was allowed and Hadiya was impleaded as a respondent. An affidavit dated 26.11.2016 was filed on her behalf stating, inter alia, the facts and circumstances under which she had left her house. The aforesaid affidavit mentioned that she had communicated to her father as well as Director General of Police by registered letter regarding the actual state of affairs. Further, she along with one Sainaba filed Writ Petition being W.P. (C) No. 1965 of 2016 seeking protection from police harassment.

7.

The Division Bench in W.P. (Criminal) No. 25 of 2016

persuaded Hadiya to go along with her father, Asokan, to her parental house but the said persuasions were all in vain as Hadiya was not willing to go with her father. The Division Bench, thereafter,

interacted

with

Sainaba

who

expressed

her

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unequivocal willingness to the Division Bench to accommodate Hadiya in “Satyasarani” institution and that Sainaba would render all necessary help to Hadiya to pursue her internship in BHMS degree course. As Hadiya had taken a stand that she wanted to join Satyasarani and she was not, in any case, willing to go back to her parental home along with Asokan, the Division Bench permitted Hadiya to stay with Sainaba at her house till she joined Satyasarani. The Division Bench thereafter adjourned the case for further hearing directing to produce proof regarding admission of Hadiya in Satyasarani.

8.

The case was taken up for consideration by the Division Bench where the counsel appearing on behalf of Hadiya produced documents to show 20.01.2016 in an that Hadiya institution, had namely, got admission ‘Markazul on Hidayat

Sathyasarani Educational & Charitable Trust’ at Karuvambram, Manjeri in Malappuram District. The counsel for Hadiya also submitted before the writ court that Hadiya was staying in the hostel of the said institution.

9.

The Division Bench, vide judgment dated 25.01.2016, directed as follows:

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“8. Under the above mentioned circumstances, we are convinced that the alleged detainee is not under any illegal confinement. She is at present staying in the above said institution on her own wish and will.

She is not under illegal confinement. Therefore, there exists no circumstances warranting interference for issuance of any writ of Habeas Corpus. Hence the original petition is hereby disposed of by recording the fact that the alleged detainee is staying in the above said institution on her own free will. It will be left open to the petitioner and her family members to make visit to her at the above institution, subject to regulations if any regarding visiting time."

10.

In view of the aforesaid order, the writ petition filed by Hadiya was withdrawn.

11.

When the matter stood thus, the 1st respondent filed a second Writ Petition (Criminal) No. 297 of 2016 alleging that his daughter was likely to be transported out of the country and the High Court, vide interim order, directed the respondent to keep her under surveillance and to ensure that she was not taken out of the country without further orders of the Court.

The

averments made by the father in the writ petition need not be stated in detail. Suffice it to say that Hadiya alias Akhila categorically declined to go with her parents and stated in the affidavit filed by her that she was not being permitted to interact with anyone. Hadiya further stated that she wanted to reside at

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a place of her choice and that she had not been issued a passport and, therefore, there was no likelihood of her being taken to Syria.

The High Court, considering the affidavit, passed the

following order: "After hearing learned counsel on both sides, we are of the opinion that in the light of the finding entered by this court in the earlier round of litigation that this Court cannot compel the petitioner's daughter to go and reside with her parents and that she is not in the illegal custody of anyone, this court cannot any longer direct that the petitioner's daughter should continue to reside at Santhinikethan Hostel, Pachalam. When we asked the petitioner's daughter as to whether she is willing to appear on another day, she submitted that she will appear on the next hearing date. Learned counsel for the detainee also submitted that the detainee will be present in person on the next hearing date. We accordingly permit the detainee to reside at a place of her choice. We also record the statement of Ms. Akhila that she proposes to reside with the seventh respondent, Smt. A.S.Sainaba, whose address is mentioned in the instant writ petition.

Sri.

P.K.Ibrahim, learned counsel appearing for the seventh respondent submitted that the seventh respondent will cause production of the petitioner's daughter on the next hearing date, if she proposes to reside with her. If the petitioner's daughter proposes to shift her residence and to reside elsewhere, we shall inform that fact to the Deputy

Superintendent of Police, Perinthalmanna in writing and furnish her full residential address and the telephone number if any over which she can be contacted. Call on 24.10.2016. The Deputy Superintendent of Police, Perinthalmanna shall cause production of the petitioner's daughter on that day. It will be open to

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the parents of Ms. Akhila to meet and interact with her.”

12.

On the basis of the aforesaid order passed by the High

Court, Hadiya was permitted to reside with the 7 th respondent. On 14.11.2016, the counsel for the writ petitioner before the High Court expressed serious apprehension regarding the continued residence of his daughter in the house of the 7 th respondent therein. On 19.12.2016, the High Court noted that she had not completed her course and acquired competence to practise homeopathy and, accordingly, expressed the opinion that she should complete her House Surgeoncy without delay and obtain eligibility to practice. A statement was made on her behalf that she has to complete her House Surgeoncy at the Shivaraj Homeopathic Medical College, Salem which has a hostel for women where she was willing to reside for the purpose of completing her House Surgeoncy. On the basis of the aforesaid, the High Court passed the following order: “We have heard the learned Senior counsel Sri.

S.Sreekumar, who appears for the detinue. We have perused the affidavit dated 26.11.2016 filed by the detinue producing documents, Exts. R8(d) and R8(e). We are not prepared to rely on Ext.R8(d) which purports to make it clear as though a registered Homeopathic Medical Practitioner has

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permitted the detinue to work as a trainee in Homeopathic Medicine on a remuneration of Rs.2000/ per month for her day today expenses.

We fail to understand how the detinue, who has not obtained a degree in Homeopathy can be permitted to train under him. The detinue has admittedly not completed her House Surgeoncy or obtained eligibility to practice. Therefore, it is only appropriate that she completes her House Surgeoncy without further delay and obtains eligibility to practice Homeopathic Medicine. Her Senior counsel Sri. S.Sreekumar informs us that, the detinue is desirous of completing her House Surgeoncy. However, we place on record our dissatisfaction at the continued residence of the detinue with the 7th respondent, who is a stranger.

The counsel for the petitioner also expresses anxiety and concern at her continued residence with the 7th respondent. He is anxious about the safety and well being of the detinue. His anxiety and concern as the parent of an only daughter is understandable. Therefore, it is necessary that the detinue shifts her residence to a more acceptable place, without further delay. According to the learned Senior counsel Sri.S.Sreekumar, she has to complete her House Surgeoncy at the Shivaraj Homeopathic Medical College, Salem. The college has a hostel for girl students where she is willing to reside

and complete her House Surgeoncy. The petitioner offers to bear the expenses for her education and stay at the Medical College Hostel.

He offers to escort her to the Medical College and to admit her into the Hostel there. The detinue is also, according to the learned Senior counsel, willing to accompany her.

2.

In view of the above, there shall be a direction to the detinue to appear before this Court at 10.15 a.m. on 21.12.2016. The petitioner shall also be present in person in Court on the said date. The petitioner who is stated to be in possession of the

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certificates of the detinue shall bring such certificates also to Court. We shall pass further orders in the matter, regarding the manner in which the detinue is to be taken to the Medical College and admitted to the ladies hostel, on 21.12.2016.

Post on 21.12.2016.”

13.

On 21.12.2016, Hadiya appeared before the High Court and

a statement was made that she had entered into marriage with Shafin Jahan, the appellant herein.

The High Court, at that

juncture, as the order would reflect, noted that her marriage was totally an unexpected event and proceeded to ascertain the veracity of the statement made. It has recorded its displeasure as to the manner in which the entire exercise was accomplished. It passed a detailed order on 21.12.2016. The relevant part of the order reads thus: “This court exercising its Parens Patriae jurisdiction is anxious and concerned about the safety of the detinue and her well being, viewed especially in the light of the allegations made in the Writ Petition and the continued obstinance of the detinue to return to her parents. The person who is stated to have got married to the detinue has appeared before us today, for the first time. He claims to be a graduate and a person who is employed in the Gulf. It is stated that, he is desirous of taking the detinue out of the country. It was precisely the said apprehension that was expressed by her father in the proceedings before this Court on the earlier occasion. This Court has on the said occasion recorded the fact that since she was not possessed

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of a Passport, there was no likelihood of her being taken to Syria. The question that crops up now is whether the marriage that has been allegedly performed is not a device to transport her out of this country. We are not aware of the identity of the person who is alleged to have got married to the detinue. We are not aware of the antecedents of the said person or his family background. The address mentioned in the marriage certificate produced shows that he is from Kollam. In what manner he has come into contact with detinue and under what circumstances, the detinue has agreed to get married to a stranger like him are matters that require to be probed thoroughly. The

marriage certificate shows that the marriage was performed by the Khazi at the house of the 7th respondent, Srambikal House, Puthur. Why the marriage was conducted at her house is not clear. Unless the above questions are answered, it cannot be accepted that the detainee is in safe hands. This Court exercising Parens Patriae jurisdiction has a duty to ensure that young girls like the detainee are not exploited or transported out of the country.

Though the learned Senior Counsel has vociferously contended that the detainee is a person who has attained majority, it is necessary to bear in mind the fact that the detainee who is a female in her twenties is at a vulnerable age. As per Indian tradition, the custody of an unmarried daughter is with the parents, until she is properly married. We consider it the duty of this Court to ensure that a person under such a vulnerable state is not exposed to further danger, especially in the circumstances noticed above where even her marriage is stated to have been performed with another person, in accordance with Islamic religious rites. That too, with the connivance of the 7th respondent with whom she was permitted to reside, by this Court. 8.

We place on record our absolute dissatisfaction at the manner in which the marriage if at all one has been performed, has been conducted. The 7 th

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respondent having been a party to these proceedings had a duty to at least inform this Court of the same, in advance. This Court had relying on her credentials and assurance, permitted the detainee to accompany her and to live with her. We would have expected a reasonable litigant, which includes the detainee also who as we have noticed earlier, is represented through an eminent Senior Counsel of this Court, to have informed this Court and obtained permission from this Court before such a drastic course was undertaken. Considering the manner in which the marriage has been conducted, the secrecy surrounding the said transaction and also the hurried manner in which the whole exercise was completed, the entire episode is shrouded in suspicion. Unless the suspicion is cleared the detainee cannot be permitted to go with the person who is seen to be accompanying her now. In view of the above, the following directions are issued.

1) The first respondent is directed to escort the detainee and to have her accommodated at the S.N.V.Sadanam Hostel, Chittoor Road, Ernakulam, until further orders. The first respondent shall ensure that she is not provided the facility of possessing or using a mobile phone. The petitioner and the mother shall be at liberty to meet her according to the rules and regulations of the hostel.

No other person is permitted to meet her.

2) The first respondent shall cause an investigation to be conducted into the education, family background, antecedents and other relevant details of Sri. Shafin Jahan who is stated to be the bridegroom of the alleged marriage that is stated to have been conducted on 19.12.2016 as evidenced by the certificate dated 20.12.2016 produced before us. The first respondent shall also enquire into the circumstances surrounding the conduct of such marriage, the persons who were involved in the

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conduct of the same the organization that has issued the marriage certificate, as well as their antecedents. A report of such investigation shall be placed before us before the next posting date of this case. The 4th respondent shall oversee the investigation and see that all relevant details are unearthed and placed before us including any links with extremist organizations, of which allegations are made in the Writ Petition.

3) The Secretary, Othukkungal Grama Panchayat is directed not to issue the marriage certificate sought for by the applicants Shafine Jahan and Hadiya as per receipt dated 20.12.2016, without further orders from this Court. The petitioner shall bear the expenses for the accommodation of the detainee at the hostel.

4)

14.

Post on 6.1.2017.”

Thereafter, the matter was taken up on various dates by the

High Court and eventually, by the impugned judgment and order, it opined that a girl aged 24 years is weak and vulnerable and capable of being exploited in many ways and thereafter, the Court, exercising the parens patriae jurisdiction, observed that it was concerned with the welfare of the girl of her age. It has been further observed by the High Court that the duty is cast on it to ensure the safety of at least the girls who are brought before it and the said duty can only be discharged by ensuring that the

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custody of Akhila alias Hadiya should be given to her parents. The High Court further directed to the following effect: “She shall be cared for, permitted to complete her House Surgeoncy Course and made professionally qualified so that she would be in a position to stand independently on her own two legs. Her marriage being the most important decision in her life, can also be taken only with the active involvement of her parents. The marriage which is alleged to have been performed is a sham and is of no consequence in the eye of law. The 7th respondent and her husband had no authority or competence to act as the guardian of Ms. Akhila and to give her in marriage. Therefore, the alleged marriage is null and void. It is declared to be so.”

15.

The High Court also directed that a police officer of the rank

of SubInspector should escort Akhila alias Hadiya from the hostel to her father’s house and the Superintendent of Police, Respondent No.2 therein, should maintain surveillance over them to ensure their continued safety.

That apart, the High Court

issued the following directions: “iii) The 4th respondent shall take over the investigation of Crime No. 21 of 2016 of Perinthalmanna Police Station and shall have a comprehensive investigation conducted co ordinating the investigation in Crime No.510 of 2016 of Cherpulassery Police Station which has been registered into the forcible conversion of Ms.Athira which is the subject matter of W.P.(Crl.) No. 235 of 2016 of this Court. The 4th respondent shall also investigate the activities of the organizations that

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are involved in this case of which reference has been made by us above. Such investigation shall be completed as expeditiously as possible and the persons who are found to be guilty shall be brought to the book. iv) The 4th respondent shall conduct a fullfledged enquiry into the lapses on the part of the Investigating Officer in this case and shall, if necessary, pursue departmental proceedings against the Officer concerned.”

16.

Against the aforesaid order, the present appeal, by special

leave, was filed by Shafin Jahan seeking permission to file the special leave which is granted by this Court.

17.

This Court, vide order dated 4.8.2017, asked Mr. Maninder

Singh, learned Additional Solicitor General, to accept notice on behalf of the Respondent No.6, the National Investigating Agency (NIA). Thereafter, various orders were passed by this Court with regard to investigation which are not necessary to narrate. It is worthy to mention that on 30.10.2017, this Court directed the 1 st respondent to produce his daughter before this Court on 27.11.2017. On the date fixed, Hadiya was produced before this Court and a prayer was made to interact with Hadiya in camera and not in open Court but repelling the said submission, the following order was passed:

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“After due deliberation, we thought it appropriate to interact with Akhila @ Hadiya and we have accordingly interacted with her in Court. We were told that though she can communicate in English, she may not be able to effectively articulate in that language. Hence, we requested Mr. V. Giri, learned senior counsel, who also represents the State of Kerala to assist in translating the questions posed to her in Court and the answers given by her.

The range of questions that we posed basically pertained to her qualifications, interest in studies, perception of life and what she intends to do in future. In response to our queries, she responded by stating that she has passed Class X from Higher Secondary School in K.V. Puram, Vaikom in Kottayam District and thereafter she was prosecuting her BHMS course in Shivaraj Homeopathy Medical College in Salem in the State of Tamil Nadu. She has also stated that she intends to continue her internship/housemanship which she had left because of certain reasons and her ambition is to become a fullfledged homeopathic doctor. She has expressed her desire to stay in the hostel and complete the course in the said college, if a seat is made available.

In the above view, we direct, as desired by her, that she be taken to Salem so as to enable her to pursue her internship/housemanship. We also direct the college to admit her and to allow the facility of a room or a shared room in the hostel as per practice to

enable her to continue her internship/housemanship afresh. Be it stated, she herself has stated that the duration of the internship/housemanship is likely to be for 11 months. If any formality is to be complied with, the college shall communicate with the university and the university shall accede to the same. Our directions are to be followed in letter and spirit by all concerned. Needless to say, when she stays in the hostel, she will be treated like any other student

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and will be guided by the hostel rules. If necessary, the expenses for pursuing the course and for the hostel shall be borne by the State of Kerala. The Dean of the College shall approach this Court if there is any problem with regard to any aspect. 'Any problem' does not mean, admission in the hostel or continuance in the course.

We direct the State of Kerala to make all necessary arrangements so that she can travel to Salem at the earliest. She has made a request that she should be accompanied by policewomen in plainclothes. The State shall attend to the prayer appropriately. If any security problem arises, the State of Tamil Nadu shall make local arrangements for the same. We have been told that she is presently staying in Kerala Bhawan at New Delhi.

Mr. V. Giri, learned senior counsel assures this Court that she shall be permitted to stay in Kerala Bhawan till she moves to Salem.

We make it clear that the NIA investigation shall continue in accordance with law."

18.

The aforesaid adumbration calls for restatement of the law

pertaining to writ of habeas corpus which has always been considered as 'a great constitutional privilege' or 'the first security of civil liberty'. The writ is meant to provide an expeditious and effective remedy against illegal detention, for such detention affects the liberty and freedom of the person who is in confinement.

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19.

In P. Ramanatha Aiyar's Law Lexicon (1997 Edn.), while

defining "habeas corpus", apart from other aspects, the following has been stated: "The ancient prerogative writ of habeas corpus takes its name from the two mandatory words habeas corpus, which it contained at the time when it, in common with all forms of legal process, was framed in Latin. The general purpose of these writs, as their name indicates, was to obtain the production of an individual."

20.

In Cox v. Hakes¹, Lord Halsbury observed as under: "For a period extending as far back as our legal history, the writ of habeas corpus has been regarded as one of the most important safeguards of the liberty of the subject. If upon the return to that writ it was adjudged that no legal ground was made to appear justifying detention, the consequence was immediate release from custody. If release was refused, a person

detained might make a fresh application to every judge or every court in turn, and each court or judge was bound to consider the question independently and not to be influenced by the previous decisions refusing discharge. If discharge followed, the legality of that discharge could never be brought in question. No writ of error or demurrer was allowed."

21.

In *Secretary of State for Home Affairs v. O'Brien* 2, it has

been observed that: "... It is perhaps the most important writ known to the constitutional law of England, affording as it does a swift and imperative remedy in all cases of 1 (1890) 15 AC 506 2 [1923] AC 603 : [1923] ALL E.R. Rep. 442 (HL)

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illegal restraint or confinement. It is of immemorial antiquity, an instance of its use occurring in the thirtythird year of Edward I. It has through the ages been jealously maintained by the courts of law as a check upon the illegal usurpation of power by the executive at the cost of the liege."

22.

In *Ranjit Singh v. State of Pepsu* (now Punjab)³, after

referring to *Greene v. Secy. of States for Home Affairs* 4, this Court ruled: "4. ... the whole object of proceedings for a writ of habeas corpus is to make them expeditious, to keep them as free from technicality as possible and to keep them as simple as possible." The Bench quoted Lord Wright who, in *Greene's* case, had stated: "... The incalculable value of habeas corpus is that it enables the immediate determination of the right to the applicant's freedom."

23.

In *Kanu Sanyal v. District Magistrate, Darjeeling and*

*Others*⁵, a Constitution Bench, after adverting to the brief history of the writ of habeas corpus, opined that it is essentially a procedural writ that deals with the machinery of justice and not a substantive law. The object of the writ is to secure release of a

3 AIR 1959 SC 843 4 [1942] AC 284 : [1941] 3 All ER 388 (HL) 5 (1973) 2 SCC 674

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person who is illegally restrained of his liberty. The Court further elaborated: "... The writ of habeas corpus is one of the most ancient writs known to the common law of England.

It is a writ of immemorial antiquity and the first threads of its origin are woven deeply within the "seamless web of history" and they are concealed and perhaps untraceable among countless incidents that constituted the total historical pattern."

24.

Tracing the history, the Court proceeded to explicate: “The writ of habeas corpus cum causa made its appearance in the early years of the fourteenth century. It not merely commanded the Sheriff to “have the body” of the person therein mentioned like its predecessor but added the words “with the cause of the arrest and detention”. The person who had the custody of a prisoner was required by this writ to produce him before the Court together with the ground for the detention. The writ thus became a means of testing the legality of the detention and in this form it may be regarded as the immediate ancestor of the modern writ of habeas corpus. The writ of habeas corpus cum causa was utilised by the common law courts during the fifteenth century as an accompaniment of the writs of certiorari and privilege to assert their jurisdiction against the local and franchise courts.”

25.

In Ware v. Sanders⁶, a reference was made to the Law of

Habeas Corpus by James A Scott and Charles C. Roe of the Chicago Bar (T.H. Flood & Company, Publishers, Chicago,

6 146 Iowa 233 : 124 NW 1081 (1910)

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Illinois, 1923) where the authors have dealt with the aspect of Habeas Corpus. It reads as under: “A writ of habeas corpus is a writ of right of very ancient origin, and the preservation of its benefit is a matter of the highest importance to the people, and the regulations provided for its employment against an alleged unlawful restraint are not to be construed or applied with over technical nicety, and when ambiguous or doubtful, should be interpreted liberally to promote the effectiveness of the proceeding.”

(See Ummu Sabeena v. State of Kerala and Others⁷)

26.

In Ummu Sabeena, the Court further ruled that the

principle of habeas corpus has been incorporated in our constitutional law and in a democratic republic like India where judges function under a written Constitution and which has a chapter of fundamental rights to protect individual liberty, the judges owe a duty to safeguard the liberty not only of the citizens but also of all persons within the territory of India; and the same exercise of power can be done in the most effective manner by issuing a writ of habeas corpus.

27.

Thus, the pivotal purpose of the said writ is to see that no

one is deprived of his/her liberty without sanction of law. It is the 7 (2011) 10 SCC 781

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primary duty of the State to see that the said right is not sullied in any manner whatsoever and its sanctity is not affected by any kind of subterfuge. detenue

is

The role of the Court is to see that the

produced

before

it,

find

out

about

his/her

independent choice and see to it that the person is released from illegal restraint. The issue will be a different one when the detention is not illegal. What is seminal is to remember that the song of liberty is sung with sincerity and the choice of an individual is appositely respected and conferred its esteemed status as the Constitution guarantees. It is so as the expression of choice is a fundamental right under Articles 19 and 21 of the Constitution, if the said choice does not transgress any valid legal framework.

Once

that

aspect

is

clear,

the

enquiry

and

determination have to come to an end.

28.

In the instant case, the High Court, as is noticeable from

the impugned verdict, has been erroneously guided by some kind of social phenomenon that was frescoed before it. The writ court has taken exception to the marriage of the respondent No. 9 herein with the appellant. It felt perturbed. As we see, there was nothing to be taken exception to. Initially, Hadiya had declined to

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go with her father and expressed her desire to stay with the respondent No.7 before the High Court and in the first writ it had so directed. The adamant attitude of the father, possibly impelled by obsessive parental love, compelled him to knock at the doors of the High Court in another Habeas Corpus petition whereupon the High Court directed the production of Hadiya who appeared on the given date along with the

appellant herein whom the High Court calls a stranger. But Hadiya would insist that she had entered into marriage with him. True it is, she had gone with the respondent No.7 before the High Court but that does not mean and can never mean that she, as a major, could not enter into a marital relationship. But, the High Court unwarrantably took exception to the same forgetting that parental love or concern cannot be allowed to fluster the right of choice of an adult in choosing a man to whom she gets married. And, that is where the error has crept in. The High Court should have, after an interaction as regards her choice, directed that she was free to go where she wished to.

29.

The High Court further erred by reflecting upon the social radicalization and certain other aspects. In a writ of habeas corpus, especially in the instant case, it was absolutely

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unnecessary. If there was any criminality in any sphere, it is for the law enforcing agency to do the needful but as long as the detinue has not been booked under law to justify the detention which is under challenge, the obligation of the Court is to exercise the

celebrated

writ

that

breathes

life

into

our

constitutional guarantee of freedom. The approach of the High Court on the said score is wholly fallacious.

30.

The High Court has been swayed away by the strategy, as it thought, adopted by the respondent No.7 before it in connivance with the present appellant and others to move Hadiya out of the country. That is not within the ambit of the writ of Habeas Corpus. The future activity, if any, is required to be governed and controlled by the State in accordance with law. The apprehension was not within the arena of jurisdiction regard being had to the lis before it.

31.

Another aspect which calls for invalidating the order of the High Court is the situation in which it has invoked the parens patriae doctrine. Parens Patriae in Latin means “parent of the

nation". In law, it refers to the power of the State to intervene against an abusive or negligent parent, legal guardian or informal

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caretaker, and to act as the parent of any child or individual who is in need of protection.

"The *parens patriae* jurisdiction is sometimes spoken of as 'supervisory'" 8.

32.

The doctrine of *Parens Patriae* has its origin in the United Kingdom in the 13th century.

It implies that the King as the

guardian of the nation is under obligation to look after the interest of those who are unable to look after themselves. Lindley L.J. in *Thomasset v. Thomasset*⁹ pointed out that in the exercise of the *Parens Patriae* jurisdiction, "the rights of fathers and legal guardians were always respected, but controlled to an extent unknown at common law by considering the real welfare." The duty of the King in feudal times to act as *Parens Patriae* has been taken over in modern times by the State.

33.

Black's Law Dictionary defines '*Parens Patriae*' as: "1. The State regarded as a sovereign; the state in its capacity as provider of protection to those unable to care for themselves.

2.

A doctrine by which a government has standing to prosecute a lawsuit on behalf of a citizen, especially on behalf of someone who is under a legal disability to prosecute the suit. The State ordinarily has no standing to sue on behalf of

8 P.W. Yong, C Croft and ML Smit, *On Equity*. 9 [1894] P 295

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its citizens, unless a separate, sovereign interest will be served by the suit."

34.

In *Charan Lal Sahu v. Union of India*¹⁰, the Constitution

Bench, while delving upon the concept of *parens patriae*, stated: "35. ... In the "Words and Phrases" Permanent Edition, Vol. 33 at page 99, it is stated that *parens patriae* is the inherent power and authority of a legislature to provide protection to the person and property of persons *non sui juris*, such as minor, insane, and incompetent persons, but the words *parens patriae* meaning thereby 'the father of the country', were applied originally to the King and are used to designate the State referring to its sovereign power of guardianship over persons under disability. (emphasis supplied) *Parens*

patriae jurisdiction, it has been explained, is the right of the sovereign and imposes a duty on sovereign, in public interest, to protect persons under disability who have no rightful protector. The connotation of the term *parens patriae* differs from country to country, for instance, in England it is the King, in America it is the people, etc.

The Government is within its duty to protect and to control persons under disability. Conceptually, the *parens patriae* theory is the obligation of the State to protect and takes into custody the rights and the privileges of its citizens for discharging its obligations.

Our Constitution makes it imperative for the State to secure to all its citizens the rights guaranteed by the Constitution and where the citizens are not in a position to assert and secure their rights, the State must come into picture and protect and fight for the rights of the citizens. ...”

10 (1990) 1 SCC 613

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29

35.

In *Anuj Garg and Others v. Hotel Association of India*

and others¹¹, a two Judge Bench, while dealing with the constitutional validity of Section 30 of the Punjab Excise Act, 1914 prohibiting employment of “any man under the age of 25 years” or “any woman” in any part of such premises in which liquor or intoxicating drug is consumed by the public, opined thus in the context of the *parens patriae* power of the State: “29. One important justification to Section 30 of the Act is *parens patriae* power of State. It is a considered fact that use of *parens patriae* power is not entirely beyond the pale of judicial scrutiny.

30. *Parens patriae* power has only been able to gain definitive legalist orientation as it shifted its underpinning from being merely moralist to a more objective grounding i.e. utility. The subjectmatter of the *parens patriae* power can be adjudged on two counts:

(i) in terms of its necessity, and (ii) assessment of any tradeoff or adverse impact, if any. This inquiry gives the doctrine an objective orientation and therefore prevents it from falling foul of due process challenge. (See *City of Cleburne v. Cleburne Living Center*¹²)”

11 (2008) 3 SCC 1 12 473 US 432, 439-41: 105 S Ct 3249 : 87 L Ed 2d 313 (1985)

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36.

Analysing further, the Court ruled that the *parens patriae*

power is subject to constitutional challenge on the ground of right to privacy also. It took note of the fact that young men and women know what would be the best offer for them in the service sector and in the age of internet, they would know all pros and cons of a profession. The Court proceeded to state: “31. ... It is their life; subject to constitutional, statutory and social interdicts—a citizen of India should be allowed to

live her life on her own terms.”

37. Emphasizing on the right of selfdetermination, the Court held: “34. The fundamental tension between autonomy and security is difficult to resolve. It is also a tricky jurisprudential issue. Right to selfdetermination is an important offshoot of gender justice discourse. At the same time, security and protection to carry out such choice or option specifically, and state of violencefree being generally is another tenet of the same movement. In fact, the latter is apparently a more basic value in comparison to right to options in the feminist matrix.”

38.

In Aruna Ramachandra Shanbaug v. Union of India¹³,

the Court, after dealing with the decision in State of Kerala v. N.M. Thomas¹⁴ wherein it has been stated by Mathew, J. that

13 (2011) 4 SCC 454 14 (1976) 2 SCC 310

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31

“the Court also is ‘State’ within the meaning of Article 12 (of the Constitution) ...”, opined: “130. In our opinion, in the case of an incompetent person who is unable to take a decision whether to withdraw life support or not, it is the Court alone, as *parens patriae*, which ultimately must take this decision, though, no doubt, the views of the near relatives, next friend and doctors must be given due weight.”

39.

Constitutional Courts in this country exercise *parens*

patriae jurisdiction in matters of child custody treating the welfare of the child as the paramount concern.

There are

situations when the Court can invoke the *parens patriae* principle and the same is required to be invoked only in exceptional situations. We may like to give some examples.

For example,

where a person is mentally ill and is produced before the court in a writ of habeas corpus, the court may invoke the aforesaid doctrine. On certain other occasions, when a girl who is not a major has eloped with a person and she is produced at the behest of habeas corpus filed by her parents and she expresses fear of life in the custody of her parents, the court may exercise the jurisdiction to send her to an appropriate home meant to give

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shelter to women where her interest can be best taken care of till she becomes a major.

40.

In *Heller v. Doe*¹⁵, Justice Kennedy, speaking for the U.S.

Supreme Court, observed: “The State has a legitimate interest under its *Parens Patriae* powers in providing care to its citizens who are unable to care for themselves.”

41.

The Supreme Court of Canada in *E. (Mrs.) v. Eve*¹⁶ observed

thus with regard to the doctrine of *Parens Patriae*: “The *Parens Patriae* jurisdiction for the care of the mentally incompetent is vested in the provincial superior courts.

Its exercise is founded on necessity. The need to act for the protection of those who cannot care for themselves.

The jurisdiction is broad. Its scope cannot be defined.

It applies to many and varied situations, and a court can act not only if injury has occurred but also if it is apprehended.

The jurisdiction is carefully guarded and the courts will not assume that it has been removed by legislation.

While the scope of the *parens patriae* jurisdiction is unlimited, the jurisdiction must nonetheless be exercised in accordance with its underlying principle.

The discretion given under this jurisdiction is to be exercised for the benefit of the person in need of protection and not for the benefit of others. It must at all times be exercised with great caution, a caution that must increase with the seriousness of the matter. This is particularly so in cases where a court might be tempted to act 15 509 US 312 (1993) 16 [1986] 2 SCR 388

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because failure to act would risk imposing an obviously heavy burden on another person.”

42.

The High Court of Australia in *Secretary, Department of*

*Health and Community Service v. J.W.B. and S.M.B.*¹⁷, speaking through Mason C.J., Dawson, Toohey and Gaudron JJ., has made the following observations with regard to the doctrine: “71. No doubt the jurisdiction over infants is for the most part supervisory in the sense that the courts are supervising the exercise of care and control of infants by parents and guardians. However, to say this is not to assert that the jurisdiction is essentially supervisory or that the courts are merely supervising or reviewing parental or guardian care and control.

As already explained, the *Parens Patriae* jurisdiction springs from the direct responsibility of the Crown for those who cannot look after themselves; it includes infants as well as those of unsound mind.”

43.

Deane J. in the same case stated the following: “4... Indeed, in a modern context, it is preferable to refer to the traditional *Parens Patriae* jurisdiction as “the welfare jurisdiction” and to the “first and paramount consideration” which underlies its

exercise as “the welfare principle”.”

44.

Recently, the Supreme Court of New South Wales, in the

case of AC v. OC (a minor)¹⁸, has observed: 17 [1992] HCA 15 (MARION’S Case) : (1992) 175 CLR 218 18 [2014] NSWSC 53

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“36. That jurisdiction, protective of those who are not able to take care of themselves, embraces (via different historical routes) minors, the mentally ill and those who, though not mentally ill, are unable to manage their own affairs: Re Eve [1986] 2 SCR 388 at 407417; Court of Australia in Secretary, Department of Health and Community Services v.

JWB and SMB (Marion’s Case (1992) 175 CLR 218 at 258; PB v. BB [2013] NSWSC 1223 at [7][8], [40] [42], [57][58] and [64][65].

37. A key concept in the exercise of that jurisdiction is that it must be exercised, both in what is done and what is left undone, for the benefit, and in the best interest, of the person (such as a minor) in need of protection.”

45.

Thus, the Constitutional Courts may also act as Parens

Patriae so as to meet the ends of justice. But the said exercise of power is not without limitation. The courts cannot in every and any case invoke the Parens Patriae doctrine. The said doctrine has to be invoked only in exceptional cases where the parties before it are either mentally incompetent or have not come of age and it is proved to the satisfaction of the court that the said parties have either no parent/legal guardian or have an abusive or negligent parent/legal guardian.

46.

Mr. Shyam Divan, learned senior counsel for the first respondent, has submitted that the said doctrine has been

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expanded by the England and Wales Court of Appeal in a case DL v. A Local Authority and others¹⁹. The case was in the context of “elder abuse” wherein a man in his 50s behaved aggressively towards his parents, physically and verbally, controlling access to visitors and seeking to coerce his father into moving into a care home against his wishes. While it was assumed that the elderly parents did have capacity within the meaning of the Mental Capacity Act, 2005 in that neither was subject to “an impairment of, or a disturbance in the functioning of the mind or brain”, it was found that the interference with the process of their decision making arose from undue influence and duress inflicted by their son. The Court of Appeal referred to the judgment in Re: SA (Vulnerable Adult with Capacity : Marriage)²⁰ to find that the parens patriae jurisdiction of the High Court existed in relation to “vulnerable if ‘capacitous’ adults”.

The cited decision of the England and Wales High Court (Family Division) affirmed the existence of a "great safety net" of the inherent jurisdiction in relation to all vulnerable adults. The term "great safety net" was coined by Lord Donaldson in the Court of Appeal judgment which

19 [2012] 3 All ER 1064 20 [2005] EWHC 2942 (FAM)

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was later quoted with approval by the House of Lords in *In Re F (Mental Patient: Sterilisation)*²¹. In paragraph 79 of *Re: SA (Vulnerable Adult with Capacity : Marriage)*, Justice Munby observes: "The inherent jurisdiction can be invoked wherever a vulnerable adult is, or is reasonably believed to be, for some reason deprived of the capacity to make the relevant decision, or disabled from making a free choice, or incapacitated or disabled from giving or expressing a real and genuine consent. The cause may be, but is not for this purpose limited to, mental disorder or mental illness. A vulnerable adult who does not suffer from any kind of mental incapacity may nonetheless be entitled to the protection of the inherent jurisdiction if he is, or is reasonably believed to be, incapacitated from making the relevant decision by reason of such things as constraint, coercion, undue influence or other vitiating factors."

47. In relation to Article 8 of the European Convention on Human Rights (ECHR), Justice Munby observes in paragraph 66: "In terms of the ECHR, the use of the inherent jurisdiction in this context is compatible with Article 8 in just the same manner as the MCA 2005 is compatible. Any interference with the right to respect for an individual's private or family life is justified to protect his health and or to protect his right to enjoy his Article 8 rights as he may choose without the undue influence (or other adverse intervention) of a third party. Any orders made by the court in a particular case must be only those which are necessary and 21 [1990] 2 AC 1

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proportionate to the facts of that case, again in like manner to the approach under the MCA 2005."

48. However, in paragraph 76, he qualifies the above principle with the following comment: "It is, of course, of the essence of humanity that adults are entitled to be eccentric, entitled to be unorthodox, entitled to be obstinate, entitled to be irrational. Many are."

49.

The

judgment

of

Re:

SA

(Vulnerable

Adult

with

Capacity : Marriage) (supra) authored by Justice Munby and cited in the above Court of Appeal case was in the context of the exercise of parens patriae to protect an eighteen year old girl from the risk of an unsuitable arranged marriage on the ground that although the girl did not lack capacity, yet she was undoubtedly a "vulnerable adult".

50.

Interestingly, in another case, namely, A Local Authority

v. HB, MB, ML and BL (By their Children's Guardian)²², the High Court's inherent jurisdiction was invoked to protect children who were allegedly going to be taken by their mother to Syria where they were at a risk of radicalization. Although the High

22 [2017] EWHC 1437 (Fam)

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Court dismissed the applications on facts for want of evidence, yet it made certain observations regarding extremism and radicalization.

51.

Mr. Divan has drawn our attention to the authority in A

Local Authority v. Y23 wherein the High Court (Family Division) invoked its inherent jurisdiction to protect a young person, the defendant Y, from radicalization.

52.

Relying upon the aforesaid decisions, he emphasized on the

concept that when the major is a vulnerable adult, the High Court under Article 226 of the Constitution of India can exercise the parens patriae doctrine which has been exercised in this case. The aforesaid judgments, in our considered opinion, are not applicable to the facts of the present case. We say so without any hesitation as we have interacted with the respondent No. 9 and there is nothing to suggest that she suffers from any kind of mental incapacity or vulnerability. She was absolutely categorical in her submissions and unequivocal in the expression of her choice.

23 [2017] EWHC 968 (Fam)

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39

53.

It is obligatory to state here that expression of choice in

accord with law is acceptance of individual identity. Curtailment of that expression and the ultimate action emanating therefrom on the conceptual structuralism of obeisance to the societal will destroy the individualistic entity of a person. The social values and morals have their space but they are not above the constitutionally guaranteed freedom. The said freedom is both a constitutional and a human right. Deprivation of

that freedom which is ingrained in choice on the plea of faith is impermissible. Faith of a person is intrinsic to his/her meaningful existence. To have the freedom of faith is essential to his/her autonomy; and it strengthens the core norms of the Constitution. Choosing a faith is the substratum of individuality and sans it, the right of choice becomes a shadow. It has to be remembered that the realization of a right is more important than the conferment of the right. Such actualization indeed ostracises any kind of societal notoriety and keeps at bay the patriarchal supremacy. It is so because the individualistic faith and expression of choice are fundamental for the fructification of the right. Thus, we would like to call it indispensable preliminary condition.

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40

54.

Nonacceptance of her choice would simply mean creating

discomfort to the constitutional right by a Constitutional Court which is meant to be the protector of fundamental rights. Such a situation cannot remotely be conceived. The duty of the Court is to uphold the right and not to abridge the sphere of the right unless there is a valid authority of law. Sans lawful sanction, the centripetal value of liberty should allow an individual to write his/her script. The individual signature is the insignia of the concept.

55.

In the case at hand, the father in his own stand and

perception may feel that there has been enormous transgression of his right to protect the interest of his daughter but his view point or position cannot be allowed to curtail the fundamental rights of his daughter who, out of her own volition, married the appellant.

Therefore, the High Court has completely erred by

taking upon itself the burden of annulling the marriage between the appellant and the respondent no.9 when both stood embedded to their vow of matrimony.

56.

Resultantly, we allow the appeal and set aside the impugned order. However, as stated in the order dated 08.03.2018, the

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investigation by the NIA in respect of any matter of criminality may continue in accordance with law. The investigation should not encroach upon their marital status.CJI (Dipak Misra)J.

(A.M. Khanwilkar)

New Delhi; 09 April, 2018.

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42

Reportable

IN THE SUPREME COURT OF INDIA CRIMINAL APPELLATE JURISDICTION
CRIMINAL APPEAL No 366 OF 2018 [Arising out of SLP (Crl) No.5777 of 2017]

SHAFIN JAHAN

APPELLANT

Versus

ASOKAN K M AND OTHERS

.....RESPONDENTS

JUDGMENT

Dr D Y CHANDRACHUD, J

1

While re-affirming the conclusions set out in the operative order, I agree

with the erudite judgment of the learned Chief Justice. I have added my own thoughts on the judicial parchment to express my anguish with the grievous miscarriage of justice which took place in the present case and to formulate principles in the expectation that such an injustice shall not again be visited either on Hadiya or any other citizen. The High Court of Kerala has committed an error of jurisdiction. But what to my mind, is disconcerting, is the manner in

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which the liberty and dignity of a citizen have been subjected to judicial affront. The months which Hadiya lost, placed in the custody of her father and against her will cannot be brought back. The reason for this concurring judgment is that it is the duty of this Court, in the exercise of its constitutional functions to formulate principles in order to ensure that the valued rights of citizens are not subjugated at the altar of a paternalistic social structure.

2

Asokan, the father of Akhila alias Hadiya moved a habeas corpus

petition before the High Court of Kerala. His apprehension was that his daughter was likely to be transported out of the country. The Kerala High Court was informed during the course of the hearing that she had married Shafin Jahan. The High Court allowed the petition for habeas corpus and directed that Hadiya shall be escorted from a hostel in which she resided in Ernakulam to the house of her father holding that: “A girl aged 24 years is weak and vulnerable, capable of being exploited in many ways. This Court exercising parens patriae jurisdiction is concerned with the welfare of a girl of her age. The duty cast on this Court to ensure the safety of at least the girls who are brought before it can be discharged only by ensuring that Ms. Akhila is in safe hands.”

3

With these directions, the Division Bench of the Kerala High Court

declared that the marriage between Hadiya and Shafin Jahan is null and void and ordered “a comprehensive investigation” by the police. Hadiya continued to remain, against her will, in compulsive confinement at the home of her father in pursuance of the directions of the Kerala High Court. On 27

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44

November 2017, this Court interacted with Hadiya and noted that she desires to pursue and complete her studies as a student of Homeopathy at a college where she was a student, in Salem. Accepting her request, this Court directed the authorities of the State to permit her to travel to Salem in order to enable her to pursue her studies.

4

The appeal filed by Shafin Jahan has been heard finally. Hadiya is a party to these proceedings.

5

This Bench of three judges pronounced the operative part of its order on

8 March 2018 and allowed the appeal by setting aside the judgment of the High Court annulling the marriage between Shafin Jahan and Hadiya. The Court has underscored that Hadiya is at liberty to pursue her endeavours in accordance with her desires.

6

Hadiya is a major. Twenty four years old, she is pursuing a course of studies leading up to a degree in Homoeopathic medicine and surgery at a college in Salem in Tamil Nadu. She was born to parents from the Ezhava Community. In January 2016, Asokan instituted a habeas corpus petition, stating that Hadiya was missing. During the course of the proceedings, Hadiya appeared before the Kerala High Court and asserted that she had accepted Islam as a faith of choice. From 7 January 2016, she resided at the establishment of Sathyasarani Education Charitable Trust at Malappuram. On

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45

19 January 2016, the Kerala High Court categorically observed that Hadiya was not under illegal confinement after interacting with her and permitted her to reside at the Sathyasarani Trust premises. Nearly seven months later, Asokan filed another petition in the nature of habeas corpus alleging that Hadiya had been subjected to forced conversion and was likely to be transported out of India.

7

During the course of the proceedings, the High Court interacted with

Hadiya. She appeared in the proceedings represented by an advocate. Hadiya, as the High Court records, declined to accompany her parents and expressed a desire to continue to reside at Sathyasarani. The High Court initially issued a direction that she should be “accommodated in a ladies’ hostel at the expense of her father”. On 27

September 2016, Hadiya made a serious grievance of being in the custody of the court for thirty five days without being able to interact with anyone. She stated that she had no passport and the allegation that she was likely to go to Syria was incorrect. Based on her request, the High Court directed her to reside at the Sathyasarani establishment. The High Court heard the case on 24 October 2016, 14 November 2016 and 19 December 2016. On 21 December 2016, the High Court was informed that Hadiya had entered into a marriage on 19 December 2016. The High Court recorded its “absolute dissatisfaction at the manner in which the marriage if at all one has been performed has been conducted”.

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46

Confronted with the undisputed fact that Hadiya is a major, the High Court still observed: “This Court exercising Parens Patriae jurisdiction has a duty to ensure that young girls like the detainee are not exploited or transported out of the country. Though the learned Senior Counsel has vociferously contended that the detainee is a person who has attained majority, it is necessary to bear in mind the fact that the detainee who is a female in her twenties is at a vulnerable age. As per Indian tradition, the custody of an unmarried daughter is with the parents, until she is properly married. We consider it the duty of this Court to ensure that a person under such a vulnerable state is not exposed to further danger, especially in the circumstances noticed above where even her marriage is stated to have been performed with another person, in accordance with Islamic religious rites. That too, with the connivance of the 7th respondent with whom she was permitted to reside, by this Court.”

Hadiya was under judicial order transported to a hostel at Ernakulam, with a direction that: “she is not provided the facility of possessing or using a mobile phone.”

Save and except for her parents no one was allowed to meet her. An investigation was ordered into the “education, family background, antecedents and other relevant details” of Shafin Jahan together with others involved in the ‘conduct’ of the marriage. The High Court continued to monitor the case on 6 January 2017, 31 January 2017, 7 February 2017 and 22 February 2017. Eventually, by its judgment and order dated 24 May 2017, the High Court allowed the petition for habeas corpus and issued the directions noted above.

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8

The principal findings which have been recorded by the High Court need to be visited and are summarised below:

(i)

This was “not a case of a girl falling in love with a boy of a different religion and wanting to get married to him” but an “arranged marriage”

(ii)

(iii)

where Hadiya had no previous acquaintance with Shafin Jahan; Hadiya met Shafin Jahan on an online portal called “Way to Nikah”; During the course of the proceedings, Hadiya had stated before the court that she desired to complete her studies as a student of Homeopathy and “nobody had a case at that time that she wanted to

(iv)

get married”;

Though on 19 December 2016, the High Court adjourned the hearing to 21 December 2016 to enable her to proceed to her college, the

(v)

marriage took place on the same day;

The marriage was “only a make-believe intended to take the detenue

(vi)

out of reach of the hands of this court”;

The conduct of the parties in conducting the marriage without informing

(vii)

the court was unacceptable;

There is no document evidencing the conversion of Hadiya to Islam; the antecedents of Shafin Jahan and his Facebook posts show a radical

(viii)

inclination; and No prudent parent would decide to get his daughter married to a person accused in a criminal case.

The High Court concluded that the marriage “is only a sham and is of no consequence”, a charade to force the hands of the court.

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9

During the course of the present proceedings, this Court by its order

dated 30 October 2017 directed the First respondent to ensure the presence of his daughter on 27 November 2017. On 27 November 2017, Hadiya stated before this Court, in the course of the hearing, that she intends to pursue further studies towards the BHMS degree course at Salem, where she was admitted. Directions were issued by the Court to ensure that Hadiya can pursue her course of studies without obstruction. We clarified that while she could stay in the hostel of the college as she desired, she would be “treated like any other student”.

10

Hadiya has filed an affidavit expressly affirming her conversion to Islam and her marriage to Shafin Jahan.

11

There are two serious concerns which emerge from the judgment of the

Kerala High Court. The first is that the High Court transgressed the limits of its jurisdiction in issuing a declaration annulling the marriage of Shafin Jahan and Hadiya in the course of the hearing of a habeas corpus petition.

12

Undoubtedly, the powers of a constitutional court are wide, to enable it

to reach out to injustice. Mr Shyam Divan, learned senior counsel appearing on behalf of First respondent emphasised the plenitude of the inherent powers of the High Court. The width of the domain which is entrusted to the High

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49

Court as a constitutional court cannot be disputed. Halsbury's Laws of England postulates: "In the ordinary way the Supreme Court, as a superior court of record, exercise the full plenitude of judicial power in all matters concerning the general administration of justice within its territorial limits, and enjoys unrestricted and unlimited powers in all matters of substantive law, both civil and criminal, except insofar as that has been taken away in unequivocal terms by statutory enactment. The term "inherent jurisdiction" is not used in contradistinction to the jurisdiction of the court exercisable at common law or conferred on it by statute or rules of court, for the court may exercise its inherent jurisdiction even in respect of matters which are regulated by statute or rule of court. The jurisdiction of the court which is comprised within the term "inherent" is that which enables it to fulfil itself, properly and effectively, as a court of law."

Dealing with the ambit of the powers under Article 226, Gajendragadkar, CJ in *State of Orissa v Ram Chandra Dev and Mohan Prasad Singh Deo* 24 observed thus: "Under Article 226 of the Constitution, the jurisdiction of the High Court is undoubtedly very wide. Appropriate writs can be issued by the High Court under the said Article even for purposes other than the enforcement of the fundamental rights and in that sense, a party who invokes the special jurisdiction of the High Court under Article 226 is not confined to case of illegal invasion of this fundamental right alone. But though the jurisdiction of the High Court under Article 226 is wide in that sense, the concluding words of that Article clearly indicate that before a writ or an appropriate order can be issued in favour of a party, it must be established that the party has a right and the said right is illegally invaded or threatened. The existence of a right is thus the foundation of a petition under Article 226."

While dealing with the powers and privileges of the state legislatures, in *Keshav Singh*²⁵, a Bench of seven learned judges held thus: 24 AIR (1964) SC 685 25 (1965) 1 SCR 413

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"136...in the case of a superior Court of Record, it is for the court to consider whether any matter falls within its jurisdiction or not. Unlike a Court of limited jurisdiction, the superior Court is entitled to determine for itself questions about its own jurisdiction.

“Prima facie”, says Halsbury, “no matter is deemed to be beyond the jurisdiction of a superior court unless it is expressly shown to be so, while nothing is within the jurisdiction of an inferior court unless it is expressly shown on the face of the proceedings that the particular matter is within the cognizance of the particular court [Halsbury's Law of England, Vol. 9, p. 349] ”.

The High Court is vested with an extra-ordinary jurisdiction in order to meet unprecedented situations (T K Rangarajan v Government of T.N.²⁶). Several decisions have noted the inherent and plenary powers of the High Court. Their purpose is to advance substantial justice. (i) Roshan Deen v Preeti Lal²⁷; (ii) Dwarka Nath v ITO, Special Circle D-ward, Kanpur ²⁸; (iii) Naresh Shridhar Nirajkar v State of Maharashtra²⁹; and (iv) M V Elisabeth v Harwan Investment and Trading (P) Ltd.³⁰

13

These principles which emerge from the precedent are well-settled.

Equally the exercise of all powers by a constitutional court must ensure justice under and in accordance with law.

14

The principles which underlie the exercise of the jurisdiction of a court in

a habeas corpus petition have been reiterated in several decisions of the Court. In Gian Devi v Superintendent, Nari Niketan, Delhi³¹, a three-judge 26 (2003) 6 SCC 581 27 (2002) 1 SCC 100 28 (1965) 3 SCR 536 29 (1966) 3 SCR 744 30 1993 Suppl. (2) SCC 433 31 (1976) 3 SCC 234

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Bench observed that where an individual is over eighteen years of age, no fetters could be placed on her choice on where to reside or about the person with whom she could stay: “...Whatever may be the date of birth of the petitioner, the fact remains that she is at present more than 18 years of age. As the petitioner is sui juris no fetters can be placed upon her choice of the person with whom she is to stay, nor can any restriction be imposed regarding the place where she should stay. The court or the relatives of the petitioner can also not substitute their opinion or preference for that of the petitioner in such a matter.”

The ambit of a habeas corpus petition is to trace an individual who is stated to be missing. Once the individual appears before the court and asserts that as a major, she or he is not under illegal confinement, which the court finds to be a free expression of will, that would conclude the exercise of the jurisdiction. In Girish v Radhamony K³² a two judge Bench of this Court observed thus: “3...In a habeas corpus petition, all that is required is to find out and produce in court the person who is stated to be missing. Once the person appeared and she stated that she had gone of her own free will, the High Court had no further jurisdiction to pass the impugned order in exercise of its writ jurisdiction under Article 226 of the Constitution.”

In Lata Singh v State of U P³³, Bench of two judges took judicial notice of the harassment, threat and violence meted out to young women and men who marry outside their caste or faith. The court observed that our society is

32 (2009) 16 SCC 360 33 (2006) 5 SCC 475

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emerging through a crucial transformational period and the court cannot remain silent upon such matters of grave concern. In the view of the court:

“17...This is a free and democratic country, and once a person becomes a major he or she can marry whosoever he/she likes. If the parents of the boy or girl do not approve of such inter-caste or inter-religious marriage the maximum they can do is that they can cut-off social relations with the son or the daughter, but they cannot give threats or commit or instigate acts of violence and cannot harass the person who undergoes such inter-caste or inter-religious marriage. We, therefore, direct that the administration/police authorities throughout the country will see to it that if any boy or girl who is a major undergoes inter-caste or inter-religious marriage with a woman or man who is a major, the couple is not harassed by anyone nor subjected to threats or acts of violence, and anyone who gives such threats or harasses or commits acts of violence either himself or at his instigation, is taken to task by instituting criminal proceedings by the police against such persons and further stern action is taken against such persons as provided by law.”

Reiterating these principles in *Bhagwan Dass v State (NCT OF DELHI)*³⁴, this Court adverted to the social evil of honour killings as being but a reflection of a feudal mindset which is a slur on the nation. In a more recent decision of a three judge Bench in *Soni Gerry v Gerry Douglas*³⁵, this Court dealt with a case where the daughter of the appellant and respondent, who was a major had expressed a desire to reside in Kuwait, where she was pursuing her education, with her father. This Court observed thus: “9...She has, without any hesitation, clearly stated that she intends to go back to Kuwait to pursue her career. In such a situation, we are of the considered opinion that as a major, she is entitled to exercise her choice and freedom and the 34 (2011) 6 SCC 396 35 (2018) 2 SCC 197

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Court cannot get into the aspect whether she has been forced by the father or not. There may be ample reasons on her behalf to go back to her father in Kuwait, but we are not concerned with her reasons. What she has stated before the Court, that alone matters and that is the heart of the reasoning for this Court, which keeps all controversies at bay.

10. It needs no special emphasis to state that attaining the age of majority in an individual's life has its own significance. She/He is entitled to make her/his choice. The courts cannot, as long as the choice remains, assume the role of *parens patriae*. The daughter is entitled to enjoy her freedom as the law permits and the court should not assume the role of a super guardian being moved by any kind of sentiment of the mother or the egotism of the father. We say so without any reservation.”

These principles emerge from a succession of judicial decisions. Fundamental to them is the judgment of a Constitution bench of this Court in *Kanu Sanyal v District Magistrate, Darjeeling*³⁶.

15

The High Court was seized of the grievance of Asokan that his daughter was under illegal confinement and was likely to be transported out of the country. In the course of the hearing of an earlier petition for habeas corpus, the High Court by its order dated 19 January 2016 expressly noticed that Hadiya was not willing to return to her parental home. Taking note of the desire of Hadiya to reside at Sathyasarani, the High Court observed that “the alleged detainee needs to be given liberty to take her own decision with respect to her future life.”

36 (1973) 2 SCC 674

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With the passing of that order the writ petition was withdrawn on 25 January 2016. Yet, again, when a second petition was filed, it was evident before the High Court that Hadiya had no desire to stay with her parents. She is a major. The Division Bench on this occasion paid scant regard to the earlier outcome and to the decision of a coordinate Bench.

The High Court inexplicably

sought to deviate from the course adopted in the earlier proceeding.

16

The schism between Hadiya and her father may be unfortunate. But it was no part of the jurisdiction of the High Court to decide what it considered to be a ‘just’ way of life or ‘correct’ course of living for Hadiya. She has absolute autonomy over her person. Hadiya appeared before the High Court and stated that she was not under illegal confinement. There was no warrant for the High Court to proceed further in the exercise of its jurisdiction under Article 226. The purpose of the habeas corpus petition ended. It had to be closed as the earlier Bench had done. The High Court has entered into a domain which is alien to its jurisdiction in a habeas corpus petition. The High Court did not take kindly to the conduct of Hadiya, noting that when it had adjourned the proceedings to issue directions to enable her to pursue her studies, it was at that stage that she appeared with Shafin Jahan only to inform the court of their marriage. How Hadiya chooses to lead her life is entirely a matter of her choice. The High Court’s view of her lack of candour with the court has no bearing on the legality of her marriage or her right to decide for herself, whom she desires to live with or marry.

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17

The exercise of the jurisdiction to declare the marriage null and void, while entertaining a petition for habeas corpus, is plainly in excess of judicial power. The High Court has transgressed the limits on its jurisdiction in a habeas corpus petition. In the process, there has been a serious transgression of constitutional rights. That is the second facet to which we now turn.

18

Hadiya and Shafin Jahan are adults. Under Muslim law, marriage or

Nikah is a contract. Muslim law recognises the right of adults to marry by their own free will. The conditions for a valid Muslim marriage are:

(i)

(ii)

(iii)

(iv)

(v)

19

Both the individuals must profess Islam;

Both should be of the age of puberty;

There has to be an offer and acceptance and two witnesses must be present;

Dower and Mehar; and Absence of a prohibited degree of relationship.

A marriage can be dissolved at the behest of parties to it, by a

competent court of law. Marital status is conferred through legislation or, as the case may be, custom. Deprivation of marital status is a matter of serious import and must be strictly in accordance with law. The High Court in the exercise of its jurisdiction under Article 226 ought not to have embarked on the course of annulling the marriage. The Constitution recognises the liberty and autonomy which inheres in each individual. This includes the ability to take decisions on aspects which define one's personhood and identity. The choice

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of a partner whether within or outside marriage lies within the exclusive domain of each individual. Intimacies of marriage lie within a core zone of privacy, which is inviolable. The absolute right of an individual to choose a life partner is not in the least affected by matters of faith. The Constitution guarantees to each individual the right freely to practise, profess and propagate religion. Choices of faith and belief as indeed choices in matters of marriage lie within an area where individual autonomy is supreme. The law prescribes conditions for a valid marriage. It provides remedies when relationships run aground. Neither the state nor the law can dictate a choice of partners or limit the free ability of every person to decide on these matters. They form the essence of personal liberty under the Constitution. In deciding whether Shafin Jahan is a fit person for Hadiya to marry, the High Court has entered into prohibited terrain. Our choices are respected because they are ours.

Social approval for intimate personal decisions is not the basis for recognising them.

Indeed, the Constitution protects personal liberty from

disapproving audiences.

20

Article 16 of the Universal Declaration of Human Rights underscores the fundamental importance of marriage as an incident of human liberty:

“Article 16.

(1) Men and women of full age, without any limitation due to race, nationality or religion, have the right to marry and to found a family. They are entitled to equal rights as to marriage, during marriage and at its dissolution.

(2) Marriage shall be entered into only with the free and full consent of the intending spouses.

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(3) The family is the natural and fundamental group unit of society and is entitled to protection by society and the State.”

21

The right to marry a person of one’s choice is integral to Article 21 of the

Constitution. The Constitution guarantees the right to life. This right cannot be taken away except through a law which is substantively and procedurally fair, just and reasonable. Intrinsic to the liberty which the Constitution guarantees as a fundamental right is the ability of each individual to take decisions on matters central to the pursuit of happiness. Matters of belief and faith, including whether to believe are at the core of constitutional liberty. The Constitution exists for believers as well as for agnostics. The Constitution protects the ability of each individual to pursue a way of life or faith to which she or he seeks to adhere. Matters of dress and of food, of ideas and ideologies, of love and partnership are within the central aspects of identity. The law may regulate (subject to constitutional compliance) the conditions of a valid marriage, as it may regulate the situations in which a marital tie can be ended or annulled. These remedies are available to parties to a marriage for it is they who decide best on whether they should accept each other into a marital tie or continue in that relationship. Society has no role to play in determining our choice of partners.

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22

In Justice K S Puttaswamy v Union of India³⁷, this Court in a decision

of nine judges held that the ability to make decisions on matters close to one’s life is an inviolable aspect of the human personality:

“The autonomy of the individual is the ability to make decisions on vital matters of concern to life... The intersection between one’s mental integrity and privacy entitles the individual to freedom of thought, the freedom to believe in what is right, and the freedom of self-determination... The family, marriage, procreation and sexual

orientation are all integral to the dignity of the individual.”

A Constitution Bench of this Court, in *Common Cause (A Regd. Society) v Union of India*³⁸, held: “Our autonomy as persons is founded on the ability to decide: on what to wear and how to dress, on what to eat and on the food that we share, on when to speak and what we speak, on the right to believe or not to believe, on whom to love and whom to partner, and to freely decide on innumerable matters of consequence and detail to our daily lives.”

The strength of the Constitution, therefore, lies in the guarantee which it affords that each individual will have a protected entitlement in determining a choice of partner to share intimacies within or outside marriage.

23

The High Court, in the present case, has treaded on an area which

must be out of bounds for a constitutional court. The views of the High Court have encroached into a private space reserved for women and men in which neither law nor the judges can intrude. The High Court was of the view that at 37 2017 (10) SCC 1 38 Writ Petition(Civil) No. 215 of 2005

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twenty four, Hadiya “is weak and vulnerable, capable of being exploited in many ways”. The High Court has lost sight of the fact that she is a major, capable of taking her own decisions and is entitled to the right recognised by the Constitution to lead her life exactly as she pleases. The concern of this Court in intervening in this matter is as much about the miscarriage of justice that has resulted in the High Court as much as about the paternalism which underlies the approach to constitutional interpretation reflected in the judgment in appeal. The superior courts, when they exercise their jurisdiction *parens patriae* do so in the case of persons who are incapable of asserting a free will such as minors or persons of unsound mind. The exercise of that jurisdiction should not transgress into the area of determining the suitability of partners to a marital tie. That decision rests exclusively with the individuals themselves. Neither the state nor society can intrude into that domain. The strength of our Constitution lies in its acceptance of the plurality and diversity of our culture. Intimacies of marriage, including the choices which individuals make on whether or not to marry and on whom to marry, lie outside the control of the state. Courts as upholders of constitutional freedoms must safeguard these freedoms. The cohesion and stability of our society depend on our syncretic culture. The Constitution protects it. Courts are duty bound not to swerve from the path of upholding our pluralism and diversity as a nation.

24

Interference by the State in such matters has a seriously chilling effect

on the exercise of freedoms. Others are dissuaded to exercise their liberties

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for fear of the reprisals which may result upon the free exercise of choice. The chilling effect on others has a pernicious tendency to prevent them from asserting their liberty. Public spectacles involving a harsh exercise of State power prevent the exercise of freedom, by others in the same milieu. Nothing can be as destructive of freedom and liberty. Fear silences freedom.

25

We have not been impressed with the submission of Mr Shyam Divan, learned senior counsel that it was necessary for the High Court to nullify, what he describes as a fraud on the Court, as an incident of dealing with conduct obstructing the administration of the justice. Whether or not Hadiya chose to marry Shafin Jahan was irrelevant to the outcome of the habeas corpus petition. Even if she were not to be married to him, all that she was required to clarify was whether she was in illegal confinement. If she was not, and desired to pursue her own endeavours, that was the end of the matter in a habeas corpus petition. The fact that she decided to get married during the pendency of the proceedings had no bearing on the outcome of the habeas corpus petition. Constitutionally it could have no bearing on the outcome.

26

During the course of the proceedings, this Court by its interim order had allowed the National Investigation Agency to assist the Court. Subsequently, NIA was permitted to carry out an investigation. We clarify that NIA may exercise its authority in accordance with the law within the bounds of the authority conferred upon it by statute. However, the validity of the marriage

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between Shafin Jahan and Hadiya shall not form the subject matter of the investigation. Moreover, nothing contained in the interim order of this Court will be construed as empowering the investigating agency to interfere in the lives which the young couple seeks to lead as law abiding citizens.

27

The appeal stands allowed in terms of our order dated 8 March 2018.

The judgment of the High Court is set aside.

.....J [Dr D Y CHANDRACHUD]

New Delhi;

April 09, 2018.